

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**SUPPLEMENTAL NOTICE OF JUDICIAL CONFLICT AND
INSTITUTIONAL INCOHERENCE**

COMES NOW Defendant, Marc Moszkowski, *pro se*, and submits this Supplemental Notice to highlight an unacknowledged and constitutionally significant conflict of interest arising from the reassignment of this remanded case to the Honorable Judge Jan Shackelford—who had already rendered judgment against Defendant in a mirror-image case directly implicating the same facts, parties, and legal issues. In support, Defendant states:

1. In 2018, two corporations—DeepGulf, Inc. and Toke Oil and Gas, Inc. [sic]—filed the instant action against Defendant, propelled and controlled by Rustin Howard and Thomas Johnson.

2. Defendant lawfully removed the case to U.S. District Court, which in early 2020 ruled substantially in Defendant's favor.
3. In response, Defendant filed a separate action in Florida Circuit Court in 2020 against Howard and Johnson for initiating a lawsuit that was frivolous, fraudulent, and knowingly based on false premises.
4. That action—distinct in caption but substantively a mirror image of the instant case—was assigned to Judge Jan Shackelford, who ultimately ruled against Defendant despite the available record.
5. In parallel, Howard and Johnson succeeded in remanding the original case (2018 CA 000543) back to State Court.
6. That remanded case was later **reassigned to Judge Shackelford**—the same judge who had already ruled in favor of Howard and Johnson, rejecting Defendant's claims regarding their conduct in initiating the very lawsuit now before her.
7. This reassignment created a judicial and logical paradox: for Judge Shackelford to rule in favor of Defendant in the present case would require her to repudiate her own prior findings. Conversely, to remain consistent, she must dismiss or ignore Defendant's evidence to preserve the integrity of her earlier decision—thus rendering fair adjudication impossible.

8. Unsurprisingly, once reassigned, Judge Shackelford began to disregard Defendant's filings wholesale, issued unexplained denials, and granted the opposing party's demand that Defendant appear in person for trial despite indisputable evidence of physical incapacity, geographic distance, and documented hardship.
9. This is not merely an appearance of conflict. It is an **actual conflict** under any reasonable reading of the Florida Code of Judicial Conduct, Canon 3(E)(1), which mandates recusal where "the judge's impartiality might reasonably be questioned."
10. Moreover, the sequence of assignments and outcomes presents a deeply troubling portrait of institutional incoherence. Whether the reassignment of Judge Shackelford was intentional or the result of procedural opacity, the practical outcome is that a judge who ruled against Defendant for alleging that this very case was fraudulent was later assigned to preside over the remanded version of the same case—now positioning Defendant as the target of claims she had implicitly endorsed. Such circular reassignment demands either a reversal of her own prior findings or continued judicial bias to preserve consistency.

11. That this reassignment occurred only after Judge Shackelford had ruled in favor of the Plaintiffs' principals in a separate but factually interlocked case—while the remanded action lay dormant for more than three years—raises additional and unavoidable concerns. Whether the delay was due to docket management, unclear internal criteria, or deliberate strategic timing, the result is that Defendant is now subject to judgment by default for failing to appear at a trial 5,000 miles away, despite having documented his physical inability to attend and having played no role in the procedural hiatus. Punishing Defendant under the guise of “efficiency” for a delay created by the very system that now disqualifies him from participation offends both logic and justice.

WHEREFORE, Defendant respectfully requests that this Notice be entered into the record and considered by any reviewing authority, whether state or federal, as evidence of judicial conflict and violation of due process arising from improper reassignment and adjudicative entanglement.

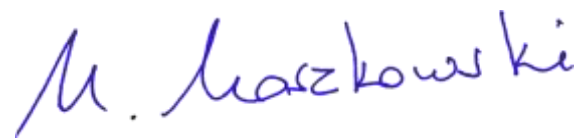
Respectfully submitted this 1st day of July, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 1st day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

